



**MEDFORD, MASSACHUSETTS
MAYOR BREANNA LUNGO-KOEHN**

September 23, 2026

Via Hand Delivery

To the Honorable President and
Members of the Medford City Council
Medford City Hall
Medford, MA 02155

Re: Purpose-built Student Housing Amendment

Dear President Bears and Members of the City Council:

After careful consideration, I have concluded that I must veto the by right purpose-built student housing amendment to the Boston Avenue Neighborhood Corridor District, reviewed as part of Agenda Item 26-093 "Amendments to the Medford Zoning Ordinance- Boston Avenue Neighborhood Corridor District", passed by the City Council after voting it down previously in the same meeting on September 15, 2026. This decision is based not on the substance of the amendment but rather on the circumstances in which the vote occurred, specifically the lack of public participation at the time of the revote and the manner in which the amendment was reconsidered, and, is based on publicly available information regarding the Council's vote on the amendment, after requesting the relevant final papers from the Council, through the City Clerk, multiple times since the meeting.

Please consider this my formal objection and veto to the Amendment.

This amendment, in my opinion, was reconsidered under circumstances that did not provide the level of transparency, public participation and deliberation that a substantive zoning change of this nature requires. Earlier in the evening, while residents, neighbors, and City planning staff were present and participating in the discussion, the Council rejected the proposed amendment by a vote of 4-3 and maintained the requirement that purpose-built student housing receive a special permit. That approach reflected prior consideration by both the City Council and the Community Development Board.

Approximately four hours into the meeting, at about 11 p.m., the Council reconsidered that decision. By that time, most members of the public, neighbors, and City planning staff had left the meeting. With only a small number of individuals remaining in attendance, including a developer interested in building in the affected area of the Hillside neighborhood, a motion was made to reconsider the earlier vote and change the provision from requiring a special permit to allowing purpose-built student housing by right. The motion was seconded and passed by a vote of 4-3.

This is a meaningful zoning change because it removes the special permit process for qualifying development within the designated zoning district. Such a change warrants thoughtful consideration in the presence of the residents, neighbors, planning staff, and other interested parties who participated in the earlier discussion and review of the land use considerations in the City.

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When the Council initially considered this amendment, members of the public had an opportunity to hear the discussion and provide input. The subsequent reconsideration occurred hours later, after most of those participants had departed. Revisiting the matter under substantially different circumstances undermines the value of the public participation that preceded the original vote and raises legitimate concerns about whether all interested parties had a meaningful opportunity to participate in the process.

Furthermore, the zoning change deviates from the previously agreed upon approach by the City Council and the Community Development Board, which had maintained a special permit requirement for this particular use. The City's planning staff, consultants, and Community Development Board have been engaged in an ongoing effort to thoughtfully implement community-driven zoning changes. A change this significant should be considered through that broader process and with the benefit of meaningful participation from the community.

To be clear, my objection is based on the circumstances surrounding this particular revote rather than an objection to every aspect of the Boston Avenue zoning amendment or to student housing generally. The issue before us is whether a significant change from special permit to by-right development should have been reconsidered and adopted at approximately 11 p.m., after most members of the public and relevant City staff had left the meeting.

Despite the outcome of the September 15 meeting, this issue is not irreversible. The Council has an opportunity to revisit the provision through a public process that provides residents, neighbors, City staff, the Community Development Board, and all other interested parties a meaningful opportunity to participate.

It is my sincere hope that we can move forward together, constructively, transparently, and in partnership, to ensure that zoning changes affecting our neighborhoods are considered through a process that respects public participation and thoughtful planning. For these reasons, and in the interest of maintaining public confidence in our zoning process and ensuring meaningful community involvement, I respectfully submit this formal veto and objection to the Amendment.

Respectfully yours,

A handwritten signature in black ink, appearing to read "Breanna Lungo-Koehn".

Breanna Lungo-Koehn
Mayor

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